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2026.PHHC.086947



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33128-2026
Decided On: 08.06.2026

MUKEEM

....PETITIONER(S)

VERSUS

STATE OF HARYANA

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Nafees Ahmad Khan, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023/438 Cr. P.C. 1973 for grant of anticipatory bail to the petitioner in FIR No.39 dated 07.05.2026 under Section 21-B of Narcotic Drugs and Psychotropic Substances Act, 1985 registered at Police Station City Tauru, District Nuh (Annexure P-1).

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case, that non commercial quantity of 45.40 heroin was recovered from the petitioner, however, there is no direct evidence against the petitioner connecting him with the alleged crime apart from the disclosure statement of co-accused. It is further contended on behalf of the petitioner that there is no other FIR under NDPS Act is registered or

pending against him except one bearing FIR No.75 dated 31.03.2025, which is not of similar nature and he is not even declared proclaimed offender. The petitioner further submits that he is ready and willing to join the investigation.

Notice of motion.

On behalf of the State

On the asking of the Court, Ms. Mayuri Lakhanpal Kalia, DAG Haryana accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner on the ground that during the course of interrogation, the co-accused disclosed that he had been procuring heroin from the petitioner. It is further contended that the co-accused remained in regular telephonic contact with the petitioner regarding the purchase and supply of heroin. On the basis of the said disclosure and the material collected during investigation, learned State counsel argues that the petitioner is actively involved in the alleged offence and, therefore, does not deserve the concession of anticipatory bail.

3. Analysis

In the present case, admittedly, the allegation against the petitioner primarily rests upon the disclosure statement of the co-accused, who is stated to have disclosed that he had been procuring heroin from the petitioner and remained in telephonic contact with him regarding the purchase and supply of the contraband. Admittedly, no recovery has been effected from the petitioner in the present case and no direct evidence connecting the petitioner with the alleged offence has been pointed out by the learned State counsel at this stage, except the aforesaid disclosure statement and the alleged telephonic contacts.

It is also not disputed that the quantity involved in the present case is non-commercial in nature. Furthermore, learned counsel for the petitioner has

submitted that no other case under the NDPS Act is pending against the petitioner, except FIR No. 75 dated 31.03.2025, which is not of similar nature and that the petitioner has never been declared a proclaimed offender.

Therefore, in view of the above and the undertaking of the petitioner as in para 10 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

08.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*